

“Big Data Policing”

Clio Morbello – 4/28

What does a close analysis of data-driven policing reveal about underlying logics of and justifications for police in society? What can we learn about notions of order, discretion, law, and criminality?

What is “big data?” How does technology relate to policing and surveillance? What institutional goals is “big-data-policing” meant to achieve? How do policing technologies augment the capacity and behavior of the police? How should we respond?

- Historical analysis of “big data”
- Historical analysis of policing
- What is the background context of their union?
- What does big-data-driven policing look like today?
- What is implied by policing technologies?
- Why is this threatening?
- What do we do?



*“Risk Terrain Modeling” website—
visualization of spatial and situational
contexts with implications for crime*

“Big Data;” a “vast, fast, disparate, and digital” data environment

-- Sarah Brayne “Big Data Surveillance” 980

*In the age of 'big data,'
uncertainty is presented as an
information problem that can be
overcome with comprehensive
data collection, statistical
analysis that can identify patterns
and relationships, and algorithms
that can determine future
outcomes by analyzing past
outcomes.*

-- Jackie Wang *Carceral Capitalism*, 238

- Just massive, to an incomprehensible degree
- Public-private partnerships
- Upending the scientific method
- Collection first, application later
- Wider and deeper surveillance

“There has been a persistent desire, particularly strident in the United States following the second world war, to automate the police function.”

--Dean Wilson, “A Brief History of Patrol Automation,” 140

Professional Policing

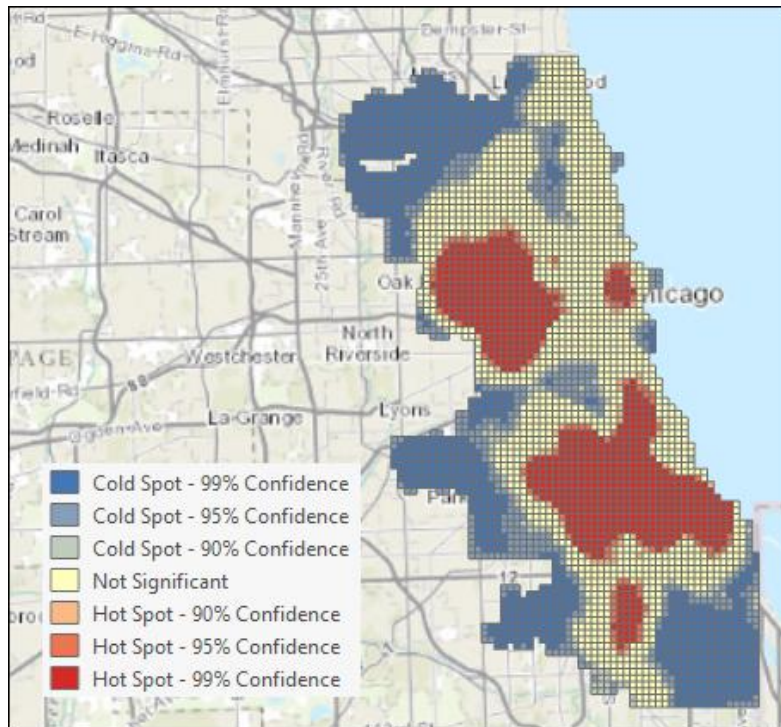
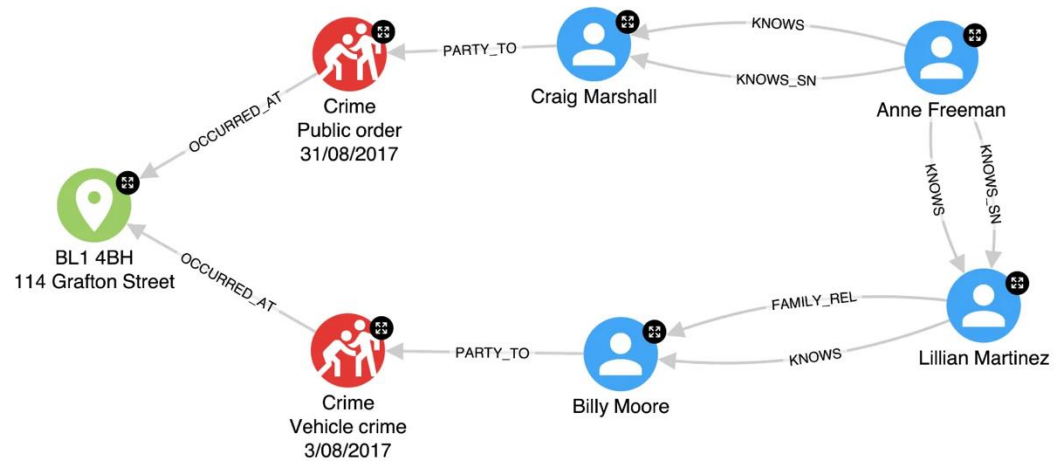
- 1950s – 1960s
- Rationalization of control and command
- Efficiency and productivity
- Crime control as product

Problem Oriented Policing

- Herman Goldstein 1979
- Professional problem-solvers and criminal researchers
- 1982 Broken Windows theory (Wilson and Kelling)

Intelligence Led Policing (Data-Driven Policing)

- COMPSTAT 1990 as predecessor
- Proactive, flexible, external partnerships
- Incentive to collect as much data as possible
- Analysis and intelligence emphasis



- Hot Spot Analysis (PredPol)
- Networking and “point system” (LAPD)
- ALPRS
- AI-Powered Surveillance Technologies

What Does This Imply?

- Geographic scope of crime
- Crime is a neutral category
- Data is a neutral tool
- Individual bias and police discretion are the main issues
- Police are a moral good and necessity

Why is This Scary?

- Police summon themselves
- Biased, incomplete data
- Profit incentive
- Lower thresholds
- Expanded police capacity
- Feedback loop and black box
- Scientific racism

Next Steps...?

Proposed Reforms

Better Regulations!

(but we can't keep up with technological development)

Address Bias in Data!

(but crime data is structurally biased to begin with)

Informed Consent!

(but it's basically impossible)

Case Studies

Specific Tech – Axon, Motorola, Palantir, Flock, Genetec – and how do they brand themselves?

What is the state of privacy legislation ? (*Carpenter v. United States*)

Current events

Thanks!

Wang, Jackie (2018). ““This is a Story About Nerds and Cops’: PredPol and Algorithmic Policing” in *Carceral Capitalism*. Semiotext(e). 228-252

Brayne, Sarah (2017). “Big Data Surveillance: The Case of Policing.” *American Sociological Review*, 82 (5): 977-1008.

Joh, Elizabeth E. "The New Surveillance Discretion: Automated Suspicion, Big Data, and Policing." *Harvard Law & Policy Review* 10, no. 1 (2016): 15-42. HeinOnline.

Wilson, Dean (2020). “Predictive Policing Management: A Brief History of Patrol Automation.” *New Formations* 98 (1): 139–55.